

Tentative Rulings for Department 501

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Tentative Ruling

Re: **Garreth Rathjanes vs. Maclynn Dockstader**
Superior Court Case No. 25CECG04969

Hearing Date: September 22, 2026 (Dept. 501)

Motion: By Defendants Fix Auto – Fresno Body Works South and
Maclynn Dockstader to Compel Arbitration

Tentative Ruling:

To deny. (Code Civ. Proc., § 1281.2)

Explanation:

This motion was originally set to be heard on August 25, 2026. The motion was continued by the court to September 22, with the direction that “[t]he deadlines for opposition and reply papers will remain the same as for the original hearing date.” Plaintiff filed an untimely opposition, as admitted in the opposition papers. Apparently unaware that plaintiff filed untimely opposition, moving parties Fix Auto – Fresno Body Works South and Maclynn Dockstader (collectively, “defendants”) filed a reply brief advising the court that no opposition had been filed, without addressing the opposition.

Because the court would deny the motion even if unopposed because of the below obvious defects, the opposition will not be considered (Cal. Rules of Court, rule 3.1300(d)), and no substantive reply is necessary or will be permitted.

A trial court is required to grant a motion to compel arbitration “if it determines that an agreement to arbitrate the controversy exists.” (Code Civ. Proc., § 1281.2) However, there is “no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate.” (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505.) Thus, when a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine: (1) whether the agreement exists, and (2) if any defense to its enforcement is raised, whether it is enforceable. The moving party bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. The party claiming a defense bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

Defendants move to compel plaintiff to arbitrate his employment-related claims pursuant to three different arbitration agreements purportedly signed or acknowledged electronically by plaintiff. However, defendants do not submit evidence authenticating plaintiff's electronic signature/acknowledgement.

Where the agreement was purportedly signed electronically, the petitioner has the burden of proving by a preponderance of the evidence that the electronic signature was authentic. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

In *Ruiz*, a declaration that failed to explain how Ruiz's printed electronic signature, or the date and time printed next to the signature, came to be placed on the arbitration agreement was insufficient. A supplemental declaration did not provide the necessary authentication where the declarant explained that the agreement was part of an employee acknowledgment form that "is" presented to all employees and that each employee is required to log into the company's HR system, using his or her "unique login ID and password," to review and sign the employee acknowledgment form. This too was insufficient, as the declarant did not explain how, or upon what basis, she inferred that the electronic signature was "the act of" Ruiz, leaving a critical gap in the evidence supporting the petition. (*Id.* at pp. 843-844.)

Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047 provides an example of a showing that would be found adequate:

Tellez detailed SCPMG's security precautions regarding transmission and use of an applicant's unique username and password, as well as the steps an applicant would have to take to place his or her name on the signature line of the employment agreement and the DRP. Based on this procedure, she concluded that the "name Jay Baniaga Espejo could have only been placed on the signature pages of the employment agreement and the DRP by someone using Dr. Espejo's unique user name and password.... [¶] Given this process for signing documents and protecting the privacy of the information with unique and private user names and passwords, the electronic signature was made by Dr. Espejo" on the employment agreement and the DRP at the date, time, and IP address listed on the documents. These details satisfactorily meet the requirements articulated in *Ruiz* and establish that the electronic signature on the DRP was "the act of" Espejo (*Civ.Code*, § 1633.9, *subd. (a)*), and therefore provide the necessary factual details to properly authenticate the document. (*Id.* at p. 1062, fn omitted.)

The evidence submitted by defendants is nowhere near enough to authenticate plaintiff's digital signatures. Dean Dockstader, Chief Financial Officer of Dockstader and Dockstader, Incorporated, states that all employees were "requested to agree to binding arbitration by signing the written arbitration agreement(s)." (Dockstader Decl., ¶ 6.) Mr. Dockstader then attaches three different arbitration policies that he obtained from plaintiff's personnel files, and which plaintiff signed acknowledged electronically. (Dockstader Decl., ¶¶ 8, 9, Exhs. 1-3.) There is no showing that Mr. Dockstader has personal knowledge that plaintiff electronically signed these agreements, and no showing that it could only have been plaintiff that electronically signed his name.

The motion must also be denied because there is no showing that plaintiff's employer is a party of the arbitration agreements. The Complaint alleges that plaintiff's employer was Fix Auto – Fresno Body Works South. The arbitration agreements / policies identify the contracting "Company" as "Fresno Body Works – North." The declaration of Mr. Dockstader does not address the difference or the relation between the two entities, such as showing that they are both dbas of the legal corporate entity. Mr. Dockstader says that Fix Auto – Fresno Body Works South is a dba of Dockstader and Dockstader,

